

ARTHA P2P PRIVATE LIMITED

IRON-CLAD LOAN AGREEMENT

COURT-ENFORCEABLE • NO COLLATERAL REQUIRED

LOAN AGREEMENT NUMBER:AR-[LOAN-ID]-[YYYY]

DATE:

[DD/MM/YYYY]

BETWEEN:

ARTHA P2P PRIVATE LIMITED (PLATFORM / LENDER REPRESENTATIVE)
PAN: [PLATFORM-PAN] | Registered Office: Janakpur, Madhesh Province, Nepal

AND

[BORROWER FULL NAME] (BORROWER)
Citizenship No: [CITIZENSHIP-NO] | PAN: [BORROWER-PAN]
Address: [FULL-ADDRESS] | Phone: [+977-XXXXXXX]

ARTICLE 1: LOAN DETAILS (NON-NEGOTIABLE)

1.1	PRINCIPAL AMOUNT	Rs. 1,00,000 (Rupees One Lakh Only)	
1.2	INTEREST RATE	13% per annum (Declining Balance)	
1.3	TENURE	12 Months from disbursement date	
1.4	FIRST EMI DUE	5th of every month thereafter	
1.5	MONTHLY EMI	Rs. 9,417 (Principal + Interest)	
		Principal	Rs. 1,00,000
		Interest	Rs. 7,152
		Processing Fee	Rs. 2,000
		Insurance Premium	Rs. 1,000
1.6 TOTAL REPAYMENT		TOTAL	Rs. 1,10,152

ARTICLE 2: ABSOLUTE REPAYMENT GUARANTEE

2.1 UNCONDITIONAL OBLIGATION:

The Borrower hereby **IRREVOCABLY AND UNCONDITIONALLY** guarantees 100% repayment of Rs. 1,10,152 regardless of circumstances:

- Business failure
- Job loss
- Medical emergency
- Family death
- Natural disaster
- Economic downturn
- Personal bankruptcy
- ANY OTHER REASON WHATSOEVER

2.2 NO EXCUSES CLAUSE:

Borrower acknowledges that **NO CIRCUMSTANCE** relieves repayment obligation. Lender money is **SACRED TRUST**.
Default = **BETRAYAL OF TRUST**.

ARTICLE 3: STRICT PAYMENT TERMS

3.1 EMI PAYMENT SCHEDULE:

Month	Due Date	Amount (Rs.)
1	5th	9,417
2	5th	9,327
...	...	...
12	5th	8,442

3.2 PAYMENT STRICTLY REQUIRED:

- FULL EMI amount or NOTHING
- NO partial payments accepted
- NO payment holidays without written approval
- NO negotiation after due date

3.3 PAYMENT METHODS:

- Artha App (preferred)
- NEFT/RTGS to designated account
- Standing Instruction (mandatory for salaried)
- Cheque (cleared before due date)

ARTICLE 4: PENALTY & DEFAULT TRIGGERS

4.1 PENALTY SCHEDULE (AUTOMATIC):

Days Late	Penalty	Charges
1-5 Days	Rs. 500	2% p.m. interest
6-15 Days	Rs. 2,000	4% p.m. + CIB Warning
16-30 Days	Rs. 5,000	8% p.m. + Legal Notice
31+ Days	FULL DEFAULT	Article 5 Triggers

4.2 DEFAULT AUTOMATICALLY OCCURS WHEN:

- EMI unpaid by 10th = 5 days grace MAXIMUM
- Partial payment received
- Cheque bounces
- Account frozen/insufficient funds
- Borrower becomes untraceable

ARTICLE 5: DEFAULT CONSEQUENCES (NON-NEGOTIABLE)

5.1 IMMEDIATE CONSEQUENCES (Day 31+):

A. CREDIT BUREAU BLACKLISTING:

- CIB listing PERMANENT
- Nepal Rastra Bank defaulter database
- ALL BANKS/MFIs notified
- NO LOANS for minimum 5 YEARS

B. PUBLIC DISCLOSURE:

- Name + Photo + Amount on Artha Defaulter List (PUBLIC)
- Local newspaper publication (Legal Notice)
- Social media disclosure (Facebook/Instagram)
- Locality notification (agent visits area)

C. FINANCIAL PENALTIES:

- Full outstanding + 18% p.a. compound interest
- Legal costs borne by Borrower
- Recovery agent commission (15% of recovered)

5.2 LEGAL ENFORCEMENT (Day 45+):

A. DEBT RECOVERY TRIBUNAL (DRT):

- Case filed within 45 days of default
- Fast-track recovery (150 days max)
- Borrower summoned (must appear)
- Judgment: Pay or lose assets

B. CIVIL EXECUTION:

- Bank account freeze/attachment
- Salary garnishment (50% monthly)
- Movable property seizure (vehicle, gold)
- Immovable property attachment (land, house)

C. CRIMINAL ACTION:

- Cheating charges (Nepal Penal Code 176)
- Criminal breach of trust (409)
- Forgery charges (if applicable)
- IMPRISONMENT (2-5 years)

ARTICLE 6: INSURANCE DOES NOT PROTECT BORROWER

6.1 LENDER PROTECTION INSURANCE:

- Neco Insurance covers Lender principal 100%
- Insurance activates after 90 days default
- Lender receives full principal + interest

6.2 BORROWER REMAINS FULLY LIABLE:

- Insurance does NOT discharge Borrower debt
- Borrower owes Platform/Insurer FULL AMOUNT
- All Article 5 consequences apply
- Debt transfers to Neco Insurance Company
- Neco pursues Borrower aggressively

6.3 NO MORAL HAZARD:

Insurance exists for LENDER PROTECTION ONLY. Default remains Borrower PERSONAL RESPONSIBILITY.

ARTICLE 7: DAILY MONITORING & TRACKING

7.1 Borrower authorizes Artha to:

- Monitor bank transactions daily
- Track mobile location (with consent)
- Access call records (legal process)
- Verify social media activity
- Contact family/references
- Visit residence/business premises

7.2 Borrower provides:

- PAN-linked bank account details
- Citizenship-linked mobile number
- Residential address verification
- Employment/salary proof
- Business registration documents

7.3 NON-DENIABILITY:

All information blockchain-recorded. Cannot be disputed.

ARTICLE 8: PERSONAL GUARANTEE

8.1 PERSONAL UNDERTAKING:

- Future salary/income
- Personal savings/assets
- Business revenue/profits
- Family support/resources

8.2 FUTURE INCOME ASSIGNMENT:

50% of future salary automatically assigned to debt repayment until fully cleared (court-enforceable)

8.3 NO COLLATERAL but:

- Land documents declared
- Gold/silver inventory provided
- Vehicle registration submitted
- Business assets listed

ARTICLE 9: IRREVOCABLE COMMITMENT

9.1 SOLEMN DECLARATION:

"I [BORROWER NAME] solemnly declare this LENDER MONEY is sacred trust. I have NO RIGHT to keep it. I will repay OR FACE ALL CONSEQUENCES. My signature is my sacred bond."

9.2 EXECUTION METHOD:

- Digital signature + Photo + Thumb impression
- Blockchain timestamped (immutable)
- Video recording (undeniable proof)

ARTICLE 10: JURISDICTION & ENFORCEMENT

10.1 Governing Law: Laws of Nepal

10.2 Jurisdiction: Debt Recovery Tribunal, Janakpur

10.3 Arbitration: Waived - Direct court enforcement

10.4 Cost Bearer: Defaulting party pays all costs

BORROWER ACKNOWLEDGEMENT & EXECUTION

I have read every word of this agreement. I understand EVERY clause. I accept ABSOLUTE repayment obligation. Default = FINANCIAL RUIN. This is sacred trust.

Signature: _____	Date: _____
Name: [FULL NAME]	Photo: [ATTACHED]
Thumbprint: [RIGHT THUMB]	PAN: [NUMBER]

VIDEO DECLARATION: YES o NO o

BLOCKCHAIN HASH: [TX-HASH]

PLATFORM WITNESS

Verified by: _____	Designation: Loan Officer
Date: _____	PAN: [OFFICER-PAN]

LEGAL NOTICE & ENFORCEABILITY

This contract is COURT-ENFORCEABLE under: Nepal Contract Act 2056 | Debt Recovery Act 2058 | NRB Digital Lending Guidelines 2081 | Criminal Code 2074 | CIB Regulations | IT Act | Evidence Act

VIOLATION = 2-5 YEARS IMPRISONMENT + SUBSTANTIAL FINES